

TENTATIVE RULINGS

Date: June 4, 2026

#	Case Name	Tentative
2.	30-2024-01418820 PC Group Retail, LLC vs. Saenz & Saenz, LLC	1. Motion for Continuance of Trial Motion for Leave to Amend Defendant Linda Saenz (“Defendant”) filed two motions: (1) a motion for leave to amend her answer and (2) a motion to continue trial from June 22, 2026 to a date between September 2026 and November 2026. Plaintiff PC Group Retail, LLC (“Plaintiff”) opposed both motions. Based on applicable law, and as set forth herein, the motions are GRANTED. I. MOTION FOR LEAVE TO AMEND Defendant moves to amend her answer to include additional affirmative defenses. Pursuant to Code of Civil Procedure section 473, the court may allow a party to amend any pleading in furtherance of justice. (Code Civ. Proc., § 473(a).) Pursuant to Code of Civil Procedure section 576: “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.) When a party seeks to amend a pleading, the motion to amend must include a copy of the proposed amendment, state the allegations to be deleted, and state allegations to be added. (Cal. Rules of Court, rule 3.1324, subd. (a).) Moreover, the moving party must submit a declaration that specifies: “(1) [t]he effect of the amendment; (2) [w]hy the amendment is necessary and proper; (3) [w]hen the facts giving rise to the amended allegations were discovered; and (4) [t]he reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b).) Courts liberally allow amendments to permit lawsuits to be determined on their merits. (<i>Nestle v. Santa Monica</i> (1972) 6 Cal.3d 920, 939; <i>Desney v. Wilder</i> (1956) 46 Cal.2d 715, 751.) “It is well established that ‘California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.’” (<i>Board of Trustees v. Superior Court</i> (2007) 149 Cal.App.4th 1154, 1163.) Here, the Court finds that the Declaration of Myle Nguyen provides the requisite information regarding the amendment as discussed in California Rules of Court, rule 3.1324 and such an amendment is necessary in furtherance of justice.

Moreover, as Defendant points out in the reply in support of the motion to amend, Plaintiff did not address the motion to amend answer in the omnibus opposition. Accordingly, Plaintiff's non-opposition to the motion to amend is considered an implied concession to the merits of Defendant's arguments presented in the motion. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566, *as modified* (Jan. 25, 2000) ["By failing to argue the contrary, plaintiffs concede this issue."]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].)

As such, the Motion for leave to file an amended answer is **GRANTED**.

Defendant shall file the proposed amended answer attached as Exhibit 2 to the Declaration of Myle Nguyen within 5 days of this order.

II. MOTION TO CONTINUE TRIAL

"A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations." (Cal. Rules of Court, rule 3.1332, subd. (b).)

"The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, rule 3.1332, subd. (c).) Circumstances that may indicate good cause include:

"(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

		(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.” (Cal. Rules of Court, rule 3.1332, subd. (c).) Other factors to consider include: “(1) [t]he proximity of the trial date; (2) [w]hether there was any previous continuance, extension of time, or delay of trial due to any party; (3) [t]he length of the continuance requested; (4) [t]he availability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) [t]he prejudice that parties or witnesses will suffer as a result of the continuance; (6) [i]f the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) [t]he court’s calendar and the impact of granting a continuance on other pending trials; (8) [w]hether trial counsel is engaged in another trial; (9) [w]hether all parties have stipulated to a continuance; (10) [w]hether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) [a]ny other fact or circumstance relevant to the fair determination of the motion or application.” (Cal. Rules of Court, rule 3.1332, subd. (d).) Here, the Court finds that the factors weigh in favor of continuing trial. Defendant seeks to substitute trial counsel. This substitution is required in furtherance of justice because Defendant will now be represented by counsel instead of proceeding in pro per and will be better position to prepare her defense. The requested continuance is reasonable as Defendant is only requesting a 3-5 month continuance. Defendant states that she needs to conduct additional discovery in order to prepare her case for trial. The Court finds that the 3-5 month continuance will sufficiently allow Defendant to conduct the requisite discovery, especially because this is a straightforward breach of guaranty action. The Court acknowledges that Defendant had two years to retain counsel and only now seeks to retain counsel as trial is approaching. Still, the continuance is short and therefore the Court finds any prejudice Plaintiff may experience by this short delay is minimal and not sufficiently consequential to bar the continuance. The Motion is GRANTED. Trial is CONTINUED to September 14, 2026 at 9:00 am in c34. All discovery and pretrial dates shall be calculated from the new trial date. Moving party to give notice.
3.	30-2025-01475801 Mercury Insurance Company vs. Cabral	1. Motion to Set Aside/Vacate Default and Judgment Defendant, Aracely Leon-Cabral “ESA Aracely Leon Cabral” (“Leon-Cabral”), in pro per, moves for an order setting aside the entry of default and/or default judgment entered against Defendant on August 21, 2025. On April 6, 2026, the Court continued the instant motion to set aside and ordered Defendant Leon-Cabral to file and serve a copy of her proposed answer no later than May 21, 2026. (ROA 47.) Defendant Leon-Cabral filed and served a copy of her Answer as ordered. (See ROA 49.) The Answer filed on May 21, 2026, is deemed filed on that date.